

Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.

Containing a total of 4.568 Acres, more or less and subject to easements and rights-of-way of record.

2-E

EXHIBIT G

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE
RECREATION FACILITIES, BARWOOD CONDOMINIUM II

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE

This Declaration of Covenants and Restrictions for Improvement and Maintenance (hereinafter the Declaration), made this 21st day of January, 1976, by BARWOOD DEVELOPMENT CORPORATION, a Florida corporation (hereinafter referred to as Developer), declares that the real property described in Exhibit 1, attached hereto and made a part hereof, which is owned by BARWOOD DEVELOPMENT CORPORATION, is and shall be held, transferred, sold, conveyed and occupied subject to the covenants, restrictions, easements, charges, assessments, and liens hereinafter set forth, and the provisions not in conflict with this Declaration contained in any Declaration of Condominium, hereinafter recorded submitting all or any portion of the lands described in Exhibit 2 to the condominium form of ownership.

ARTICLE I

Definitions

1. The terms used in this Declaration shall have the meaning as follows or as stated in Florida Statute 711, as amended, the Condominium Act, unless the context otherwise requires.

(a) Association shall mean and refer to the Barwood Condominium Improvement Association, Inc., a Florida corporation not for profit, the By-Laws, and Articles of Incorporation of which are attached hereto as Exhibit H and I, respectively.

(b) Member. As used herein, the term "member" means and refers to any person, natural or corporate, who becomes a member of the Association as described in the Articles of Incorporation and By-Laws whether or not that person participates in the Association as a member.

(c) Unit Owner means the owner of a condominium parcel. The words "apartment owner" are synonymous with the words "unit owner" as defined herein.

(d) Institutional Mortgage is the owner and holder of a mortgage encumbering a condominium parcel, which owner and holder of said mortgage shall be either a bank, life insurance company, federal or state savings and loan association, real estate or mortgage investment trust, or other mortgagee which shall be acceptable to the Association.

ARTICLE II

Property Subject to This Declaration

1. The real property which is and shall be held, transferred, sold, conveyed and occupied subject to this Declaration is located in Palm Beach County, Florida, and is described in Exhibit I, attached hereto.

ARTICLE III

Property Rights

1. Certain real property may be conveyed to the Association from time to time which would be for the use and benefit of all the members of Barwood Condominium Improvement Association, Inc.

2. Each member shall have a right of easement and enjoyment in and to any real property conveyed to the Association and such shall be appurtenant to and pass with title to each condominium parcel, subject to the following:

(a) The right of the Association (in accordance with its Articles and By-Laws), to borrow money for the purpose of improving such real property and in aid thereof to mortgage said properties;

(b) The right of the Association to take such steps as are reasonably necessary to protect the above-described properties against foreclosure;

(c) The right of the Association to dedicate or transfer all or any part of such real property to any public agency, authority or utility;

(d) All provisions of this Declaration and the Articles of Incorporation and By-Laws of the Association; and

(e) Rules and regulations governing use and enjoyment of the real property of the Association adopted by the Association.

ARTICLE IV

Maintenance Association

1. The Developer has caused to be incorporated pursuant to Chapter 617, Florida Statutes, a corporation not for profit, known as Barwood Condominium Improvement Association, Inc., in accordance with the Articles of Incorporation.

2. Membership. Every person or entity who is a record fee simple owner of a condominium parcel in the real property identified pursuant to attached Exhibit 2, shall be members of the Association provided that such person or entity who holds such interest merely as a security for the performance of an obligation shall not be a member. Membership shall be appurtenant to and may not be separated from ownership of any Unit.

3. Voting. Members shall have such voting rights as are set out in the Articles of Incorporation of the Association.

ARTICLE V

Covenants for Improvements and Maintenance Assessments

1. Barwood Development Corporation, for itself, and for each condominium parcel which it owns within the real property described in Exhibit 2 hereby covenants, and each unit owner (by acceptance of a deed, whether or not it shall be so expressed in such deed or other form of conveyance) including any purchaser at a judicial sale, shall hereafter be deemed to covenant and agree to pay to the Association: (a) any annual assessments or charges; and (b) any special assessments for capital improvements or major repair. Each assessment shall be a personal obligation of the unit owner and shall also be a lien against the condominium parcel.

2. The assessments levied and collected by the Association shall be used for the purpose of promoting the recreation and social welfare of the unit owners and condominium associations within the area described in Exhibit 2.

3. The annual assessment which shall be payable in monthly installments and all special assessments shall be fixed and established by the Board of Directors in accordance with the projected budget, or special financial needs of the Association.

4. The monthly installments of the annual assessment shall commence on a date fixed by the Board of Directors. The due date of any annual or special assessment shall be established in the Board of Directors resolution authorizing such assessment.

5. The Board of Directors of the Association shall fix the date of commencement and the amount of each assessment against each unit owner at least thirty (30) days in advance of such due date or period, and shall maintain an Association Lien Book listing the assessments and the properties so assessed, which shall be available for inspection by any member of the Association during normal business hours. Written notice of each assessment shall be sent to every member subject to the assessment within ten (10) days of the resolution fixing the assessment. The Association shall upon demand at any time furnish to any unit owner liable for said assessment a certificate in writing signed by an officer of the Association, setting forth whether said assessment has been paid. Such certificate shall be conclusive evidence of payment of any assessment therein stated to have been paid.

6. If the assessments are not paid on the date when due, such assessment shall then become delinquent and shall, together with such interest thereon and cost of collection thereof, thereupon becoming a continuing lien on the property which shall bind such property in the hands of the then unit owner, his heirs, devisees, personal representatives and assigns, and shall also be the continuing personal obligation of the unit owner against whom the assessment

is levied. The lien of the assessments provided for herein shall be subordinate to the lien of any institutional mortgage or mortgages now or hereafter placed upon a condominium parcel subject to assessment; provided, however, that such subordination apply only to the assessments which have become due and payable prior to a sale or transfer of such condominium parcel pursuant to a decree of foreclosure, or any other proceeding in lieu of foreclosure. No sale or transfer shall relieve any condominium parcel from liability for any assessments thereafter becoming due, nor for the lien of any such subsequent assessment. The written opinion of the Association that the lien is subordinate to a mortgage shall be dispositive of any question of subordination.

If a special assessment or a monthly installment of annual assessment is not paid within ten (10) days after the delinquency date, the unpaid assessments shall bear interest from the date of delinquency at the rate of ten (10) percent per annum, and the Association may bring an action to foreclose the lien against the property, in like manner as a foreclosure of a mortgage on real property, and/or a suit on the personal obligation against the unit owner, and there shall be added to the amount of such assessment the costs of preparing and filing the complaint in such action, and in the event a judgment is obtained, such judgment shall include interest on the assessment as above provided and reasonable attorneys' fee to be fixed by the court together with the costs of the action.

ARTICLE VI

Miscellaneous

1. Duration. The Covenants and Restrictions in this Declaration shall run with and bind the land and shall inure to the benefit of and be enforceable by the Association or the unit owner of any condominium parcel subject to this Declaration, their respective legal representatives, heirs, successors and assigns; provided, however, that the same may be changed by the vote of the members of three-fourths of the units agreeing to amend, modify or terminate said covenants and restrictions in whole or in part.

2. Notices. Any notice required to be sent to any member under the provisions of this Declaration shall be deemed to have been properly sent when mailed post-paid to the last known address of the persons who appear as a member or unit owner on the records of the Association at the time of such mailing.

3. Severability. Invalidation of any one of these Covenants or Restrictions by judgment or court order shall in no wise affect any other provisions which shall remain in full force and effect.

4. Amendment. This Declaration may be amended at any time and from time to time upon the vote of members holding not less than three-fourths of the voting interest of the membership, provided that so long as Barwood Development Corporation hold title to any real property affected by this Declaration, Barwood Development Corporation's consent must be obtained in writing. Any such amendment shall be evidenced by an instrument executed by the proper

officers of the Association and recorded in the Public Records of Palm Beach County, Florida.

5. Effective Date. This Declaration shall become effective upon recordation in the Public Records of Palm Beach County, Florida.

Executed as of the date first above written.

BARWOOD DEVELOPMENT CORPORATION

BY: George H. Sparling
GEORGE H. SPARLING, President

ATTEST: Barbara M. Sparling
BARBARA M. SPARLING, Secretary



STATE OF FLORIDA)
 : ss
COUNTY OF PALM BEACH)

On this day personally appeared before me, the undersigned authority, George H. Sparling and Barbara M. Sparling, as President and Secretary, respectively, of Barwood Development Corporation, a Florida corporation, and they acknowledged before me that they executed the foregoing Declaration of Covenants as such officers of said corporation and that they affixed thereto the official seal of said corporation and that the foregoing instrument is the act and deed of said corporation.

WITNESS my hand and official seal at Boca Raton, in County and State last aforesaid, this 21ST day of January, 1976.

Madeleine C. Bernack
NOTARY PUBLIC

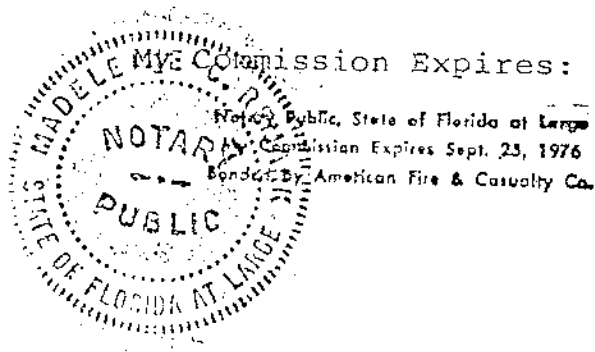


EXHIBIT 1

LEGAL DESCRIPTION OF
RECREATION FACILITIES

OF

BARWOOD CONDOMINIUM II, A CONDOMINIUM

TO

EXHIBIT G

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE
RECREATION FACILITIES, BARWOOD CONDOMINIUM II

DECLARATION OF CONDOMINIUM

FOR

BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

LEGAL DESCRIPTION

RECREATION FACILITIES, BARWOOD CONDOMINIUM II

That parcel of land denoted as Recreation Area "A", as shown on Plat I of Barwood, which is recorded in Plat Book 31, Pages 24 and 25, Public Records, Palm Beach County, Florida.

TOGETHER WITH:

That portion of Block A contained within the loop of Barwood Lane North as shown on the aforesaid Plat I of Barwood, further described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on the aforesaid Plat I of Barwood; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point; thence with a bearing of N. $88^{\circ} 40' 37''$ W., a distance of 25.00 feet to the Point of Beginning; thence with a curve to the right having a tangent bearing of S. $1^{\circ} 19' 23''$ W., a radius of 625.00 feet, an arc length of 44.39 feet to a point; thence with a bearing of S. $52^{\circ} 46' 59''$ W., a distance of 36.80 feet to a point; thence with a bearing of N. $79^{\circ} 49' 37''$ W., a distance of 41.29 feet to a point; thence with a curve to the right having a radius of 61.67 feet, an arc length of 281.09 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet;

thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 15.07 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 105.10 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 28.78 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 179.00 feet to a point; thence with a bearing of S. $61^{\circ} 51' 31''$ E., a distance of 28.78 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.00 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W., a radius of 100.00 feet, an arc length of 32.2 feet to a point; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to a point; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W.,

a radius of 100.00 feet, an arc length of 32.2 feet to a point, thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet to the Point of Beginning of the centerline of the subject easement; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.0 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida and a portion of PLAT II of BARWOOD as recorded in Plat Book 33, Pages 27-28 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet; thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 364.15 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $27^{\circ} 11' 29''$ W., a distance of 36.10 feet to a point; thence with a bearing of N. $19^{\circ} 01' 23''$ E., a distance of 213.94 feet to a point; thence with a curve to the left having a radius of 675.00 feet an arc length of 208.52 feet to a point; thence with a bearing of N. $74^{\circ} 03' 20''$ E., a distance of 54.36 feet to a point; thence with a curve to the right having a tangent bearing of S. $35^{\circ} 17' 43''$ E., a radius of 187.75 feet, an arc length of 45.53 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 75.55 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 163.00 feet to a point; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 191.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 67.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 95.11 feet to a point lying on the North right-of-way line of S.W. 18th Street; thence with a bearing of West along said North right-of-way line of Southwest 18th Street a distance of

73.63 feet to a point; thence with a curve to the right having a radius of 1205.00 feet, an arc length of 349.00 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 244.70 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet to the Point of

Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.

Containing a total of 4.568 Acres, more or less and subject to easements and rights-of-way of record.

EXHIBIT 2

LEGAL DESCRIPTION OF PROPERTY
TO BE SERVED BY
RECREATION FACILITIES AT BARWOOD
(ALL PHASES) CONDOMINIUM

BARWOOD CONDOMINIUM II, A CONDOMINIUM

TO

EXHIBIT G

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE
RECREATION FACILITIES, BARWOOD CONDOMINIUM II

DECLARATION OF CONDOMINIUM

FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

LEGAL DESCRIPTION OF PROPERTY
TO BE SERVED BY RECREATION FACILITIES
AT BARWOOD (All Phases)

All of Block "A", Plat I of BARWOOD as recorded in Plat Book 31, Pages 24 and 25 and Plat II of BARWOOD as recorded in Plat Book 33, Pages 27 and 28 of the Public Records of Palm Beach County, Florida:

LESS:

That parcel of land denoted as Recreation Area "A", as shown on Plat I of Barwood, which is recorded in Plat Book 31, Pages 24 and 25, Public Records, Palm Beach County, Florida.

ALSO LESS:

That portion of Block A contained within the loop of Barwood Lane North as shown on the aforesaid Plat I of Barwood, further described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on the aforesaid Plat I of Barwood; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point; thence with a bearing of N. $88^{\circ} 40' 37''$ W., a distance of 25.00 feet to the Point of Beginning; thence with a curve to the right having a tangent bearing of S. $1^{\circ} 19' 23''$ W., a radius of 625.00 feet, an arc length of 44.39 feet to a point; thence with a bearing of S. $52^{\circ} 46' 59''$ W., a distance of 36.80 feet to a point; thence with a bearing of N. $79^{\circ} 49' 37''$ W., a distance of 41.29 feet to a point; thence with a curve to the right having a radius of 61.67 feet, an arc length of 281.09 feet more or less to the Point of Beginning.

ALSO LESS:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet;

thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 15.07 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 105.10 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 28.78 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 179.00 feet to a point; thence with a bearing of S. $61^{\circ} 51' 31''$ E., a distance of 28.78 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.00 feet more or less to the Point of Beginning.

ALSO LESS: an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W., a radius of 100.00 feet, an arc length of 32.2 feet to a point; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet more or less to the end of the centerline of the subject easement.

ALSO LESS: an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to a point; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W.,

a radius of 100.00 feet, an arc length of 32.2 feet to a point, thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet to the Point of Beginning of the centerline of the subject easement; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.0 feet more or less to the end of the centerline of the subject easement.

ALSO LESS:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida and a portion of PLAT II of BARWOOD as recorded in Plat Book 33, Pages 27-28 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet; thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 364.15 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $27^{\circ} 11' 29''$ W., a distance of 36.10 feet to a point; thence with a bearing of N. $19^{\circ} 01' 23''$ E., a distance of 213.94 feet to a point; thence with a curve to the left having a radius of 675.00 feet an arc length of 208.52 feet to a point; thence with a bearing of N. $74^{\circ} 03' 20''$ E., a distance of 54.36 feet to a point; thence with a curve to the right having a tangent bearing of S. $35^{\circ} 17' 43''$ E., a radius of 187.75 feet, an arc length of 45.53 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 75.55 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 163.00 feet to a point; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 191.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 67.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 95.11 feet to a point lying on the North right-of-way line of S.W. 18th Street; thence with a bearing of West along said North right-of-way line of Southwest 18th Street a distance of

73.63 feet to a point; thence with a curve to the right having a radius of 1205.00 feet, an arc length of 349.00 feet more or less to the Point of Beginning.

ALSO LESS: an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 244.70 feet more or less to the end of the centerline of the subject easement.

ALSO LESS: an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet to the Point of

Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.

Containing a total of 4.568 Acres, more or less and subject to easements and rights-of-way of record.

(40)

EXHIBIT H
ARTICLES OF INCORPORATION
BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

STATE OF FLORIDA

DEPARTMENT OF STATE



I certify that the following is a true and correct copy of

CERTIFICATE OF INCORPORATION

OF

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

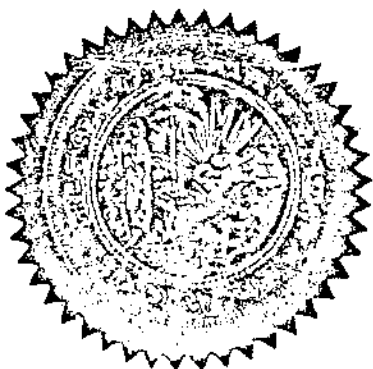
filed in this office on the 23rd day of March,

19 76 .

Charter Number: 735353

GIVEN under my hand and the Great
Seal of the State of Florida, at
Tallahassee, the Capital, this the
23rd day of March,
19 76.

SECRETARY OF STATE



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ARTICLES OF INCORPORATION
OF
BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

The undersigned hereby associate themselves for the purpose of forming a corporation not for profit under Chapter 617, Florida Statutes, and certify as follows:

ARTICLE I

The name of the corporation shall be:

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

ARTICLE II

Purpose

The purposes and objectives of the Association shall be:

1. To provide and promote the health, recreation and social welfare of the Unit Owners within the area referred to in Exhibit 1 attached hereto, as authorized by the Articles of Incorporation, the By-Laws of the Barwood Condominium Improvement Association, Inc., and the Declaration of Covenants and Restrictions for Improvement and Maintenance now or hereafter filed on all or any portion of the area referred to in Exhibit 1.
2. To operate, maintain, repair, and improve landscaping, structures and other improvements and promulgate rules and regulations concerning the recreation facilities upon the real property described in Exhibit 2.
3. To perform all functions and exercise such powers contemplated of the Barwood Condominium Improvement Association, Inc., and delegated to the Board of Directors of the Barwood Condominium Improvement Association, Inc., in any Declaration of Covenants and Restrictions for Improvement and Maintenance now or hereinafter filed on all or any portion of the area referred to in Exhibit 1 and Exhibit 2.
4. To provide for private security, fire safety and protection, and similar functions and services in the area described in Exhibit 2.
5. To provide, (purchase, acquire) replace, improve, maintain and/or repair such buildings, structures, street lights

and other structures, landscaping, paving and equipment, both real and personal, related to the health, safety and social welfare of the members of the Association in conjunction with operating the recreation facilities located upon the real property described in Exhibit 2.

6. To operate without profit for the sole and exclusive benefit of its members.

ARTICLE III

Powers

The Barwood Condominium Improvement Association, Inc., shall have the following powers:

1. The Barwood Condominium Improvement Association, Inc., shall have all of the common law and statutory powers of a corporation not for profit under the laws of the State of Florida which are not in conflict with the terms of these Articles.
2. To enter into, make, establish, and enforce rules, regulations, by-laws, covenants, restrictions and agreements to carry out the purposes of Barwood Condominium Improvement Association, Inc.
3. To make and collect assessments against members of the Barwood Condominium Improvement Association, Inc., to defray the costs, expenses, reserves and losses of the Barwood Condominium Improvement Association, Inc., as provided in Article VI hereinafter.
4. To use the proceeds of assessments in the exercise of its powers and duties, and as contemplated by the functions and powers delegated to the Barwood Condominium Improvement Association, Inc., by the Declaration of Covenants and Restrictions for Improvement and Maintenance now or hereafter filed on all or any portion of that area described in Exhibit 1.
5. To hold funds for the exclusive benefit of the members of the Barwood Condominium Improvement Association, Inc., as set forth in these Articles of Incorporation and as provided in any Declaration of Covenants and Restrictions for Improvement and Maintenance now or hereafter filed on all or any portion of that area described in Exhibit 1 and Exhibit 2.

ARTICLE IV

Members

1. The members of Barwood Condominium Improvement Asso-

ciation, Inc., shall consist of all Condominium Unit Owners within the area described in Exhibit 1. Each Unit Owner shall be a member upon title of the condominium parcel being conveyed by deed and being recorded among the Public Records of Palm Beach County, Florida. The record owners of all condominium parcels within the area described in Exhibit 1 shall be members of the Barwood Condominium Improvement Association, Inc., and no other persons or entities shall be members.

2. Transfer of membership in the Barwood Condominium Improvement Association, Inc., shall be established by the recording in the public records of Palm Beach County, Florida, of a condominium deed or other instrument establishing a record title to a condominium parcel in a condominium located within the area described in Exhibit 1, the owner or owners designated by such instrument thereby becoming a member or members of the Association. The membership in the Association of the prior owner or owners shall be thereby terminated.

3. The share of a member in the funds and assets of the Barwood Condominium Improvement Association, Inc., cannot be assigned, hypothecated or transferred in any manner except as an appurtenance to his or her condominium parcel.

4. The members of the Barwood Condominium Improvement Association, Inc., singly or collectively, shall be entitled to only one vote for each condominium parcel owned by them. The exact manner of exercising voting rights when there are two or more owners of one condominium parcel shall be determined by the by-laws of the Barwood Condominium Improvement Association, Inc.

ARTICLE V

Voting

A member shall represent himself, or may authorize by proxy the condominium association in which he is a member to act on his behalf, in all meetings or other activities which a member of the Barwood Condominium Improvement Association, Inc., is entitled to attend.

ARTICLE VI

Assessments

1. Subject to the restrictions and limitations set forth herein, each member shall pay to the Barwood Condominium Improvement Association, Inc., an annual assessment in monthly installments which shall be determined by the Board of Directors.

2. The Barwood Condominium Improvement Association, Inc., will secure funds with which to operate by assessment of each member pursuant to a budget adopted annually by the Board of Directors.

ARTICLE VII

Directors

1. The affairs of the Barwood Condominium Improvement Association, Inc., shall be managed by the Board of Directors consisting of not less than three (3) nor more than nine (9) members. The initial Board of Directors shall consist of four (4) members.

2. The Directors of the Association shall be elected at the annual meeting of the members in the manner determined by the By-Laws. Directors may be removed and vacancies on the Board of Directors shall be filled in the manner provided by the By-Laws.

3. The first election of Directors by the membership of the Association shall not be held until after all condominium parcels located upon the real property described in Exhibit 2 have been sold and closed by the Developer, or until the Developer shall voluntarily call an election, whichever shall first occur.

4. The Directors herein named shall serve until the first election of Directors by Association members and any vacancies in their number occurring before the first election shall be filled by the remaining Directors.

5. The names and addresses of the members of the first Board of Directors who shall hold office until their successors are elected and have qualified, or until removed, are as follows:

<u>Name</u>	<u>Address</u>
George H. Sparling	9740 S.W. 19th Street Boca Raton, Florida 33432
Madalcane H. Evans	23099 Barwood Lane North #301 Boca Raton, Florida 33432
Barbara M. Sparling	9740 S.W. 19th Street Boca Raton, Florida 33432
Ella E. Surerus	23099 Barwood Lane North #401 Boca Raton, Florida 33432

ARTICLE VIII

Officers

<u>Name and Addresses</u>	<u>Office</u>
GEORGE H. SPARLING 9740 S.W. 19th Street Boca Raton, Florida 33432	President
MADALEANE H. EVANS 23099 Barwood Lane North #301 Boca Raton, Florida 33432	Vice President
BARBARA M. SPARLING 9740 S.W. 19th Street Boca Raton, Florida 33432	Secretary
ELLA E. SURERUS 23099 Barwood Lane North #401 Boca Raton, Florida 33432	Treasurer

ARTICLE IX

Indemnification

Every Director, and every officer of the Association shall be indemnified by the Barwood Condominium Improvement Association, Inc., against all expenses and liabilities, including counsel fees, reasonably incurred by, or imposed upon him in connection with any proceeding to which he may be a party, or in which he may become involved, by reason of his being or having been a Director or officer of the Association, whether or not he is a Director or officer at the time such expenses are incurred, except in such cases wherein the Director or officer is adjudged guilty of willful misfeasance or malfeasance in the performance of his duties; provided that in the event of a settlement, indemnification shall apply only when the Board of Directors approve such settlement and reimbursement as being for the best interest of the Barwood Condominium Improvement Association, Inc. The foregoing right of indemnification shall be in addition to, and not exclusive of all other rights to which such Director or officer may be entitled.

ARTICLE X

Transactions In Which Directors Or Officers Are Interested

No contract or transaction between the Barwood Condominium Improvement Association, Inc., and one or more of its officers or Directors, or between the Barwood Condominium Improvement Association, Inc., and any other corporation, partnership, association or other organization in which one or more of its Directors or officers are directors or officers, or have financial interest, shall be invalid, void or voidable

solely for this reason, or solely because the Director or officer is present at or participates in the meeting of the Board or Committee thereof which authorized the contract or transaction, or solely because his or their votes are counted for such purpose. No Director or Officer of the Association shall incur liability by reason of the fact that he is or may be interested in any such contract or transaction.

ARTICLE XI

By-Laws

The first By-Laws of the Barwood Condominium Improvement Association, Inc., shall be adopted by the Board of Directors named herein, and may be altered, amended or rescinded in the manner provided by the By-Laws.

ARTICLE XII

Amendments

Amendments to these Articles of Incorporation shall be proposed and adopted in the following manner:

1. Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is considered.

2. A resolution approving a proposed amendment may be proposed by either the Board of Directors or by any one or more of the Barwood Condominium Improvement Association, Inc. Directors and members not present in person or by proxy at the meetings considering the amendment may express their approval in writing, providing such approval is delivered to the Secretary of the Barwood Condominium Improvement Association, Inc., at or prior to the meetings.

(a) Such approval must be by not less than seventy-five (75%) percent of the entire membership of the Board of Directors and by not less than seventy-five (75%) percent of the votes of the entire membership of the Barwood Condominium Improvement Association, Inc.; or

(b) By not less than eighty (80%) percent of the votes of the entire membership of the Barwood Condominium Improvement Association, Inc.

3. No amendment shall make any changes in the qualifications for membership or in voting rights of members, or any change in Article V and/or Article VI hereof without approval in writing by each member.

4. A copy of each amendment to the Articles of Incorporation as approved shall be accepted and certified by the Secretary.

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tary of State and recorded in the Public Records of Palm Beach County, Florida.

ARTICLE XIII

Dissolution of the Association

1. Upon dissolution of the Barwood Condominium Improvement Association, Inc., all of its assets remaining after provision for creditors and payment of all costs and expenses of such dissolution shall be distributed among the members, subject to the limitations set forth below, as tenants in common, each member's share of the assets to be equal.

2. The Barwood Condominium Improvement Association, Inc., may be dissolved upon an unanimous resolution to that effect being adopted by the members of the Board of Directors, and, if such decree be necessary at the time of dissolution, after receipt of an appropriate decree as set forth in Florida Statute 617 or Statute of similar import, and approved by two-thirds of the voting rights of the Barwood Condominium Improvement Association, Inc. members.

ARTICLE XIV

Term

The Barwood Condominium Improvement Association, Inc., shall have perpetual existence.

ARTICLE XV

Subscribers

The names and addresses of the subscribers to these Articles of Incorporation are as follows:

<u>Name</u>	<u>Address</u>
George H. Sparling	9740 S.W. 19th Street Boca Raton, Florida 33432
Madaleane H. Evans	23099 Barwood Lane North #301 Boca Raton, Florida 33432
Barbara M. Sparling	9740 S.W. 19th Street Boca Raton, Florida 33432
Ella E. Surerus	23099 Barwood Lane North #401 Boca Raton, Florida 33432

Resident Agent

ARTICLE XVII

ARTICLE XVIII

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WITNESS my hand and official seal at Boca Raton, said
State and County, on the 21ST day of JANUARY, 1976.

Madeleine Chermak
NOTARY PUBLIC

My Commission Expires:

Notary Public, State of Florida at Large
My Commission Expires Sept. 25, 1976
Bonded by American Fire & Casualty Co.

CERTIFICATE DESIGNATING PLACE OF
BUSINESS OR DOMICILE FOR THE SERVICE OF
PROCESS WITHIN THIS STATE, NAMING AGENT UPON WHOM
PROCESS MAY BE SERVED.

In pursuance of Chapter 48.091, Florida Statutes, the
following is submitted, in compliance with said Act:

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.,
desiring to organize under the laws of the State of Florida
with its principal office, as indicated in the Articles of
Incorporation at City of Boca Raton, County of Palm Beach,
State of Florida, has named Jay J. REYNOLDS, ESQ., located
at 301 West Camino Gardens Boulevard, Plaza Two Building,
City of Boca Raton, County of Palm Beach, State of Florida,
as its agent to accept service of process within this State.

ACKNOWLEDGMENT:

Having been named to accept service of process for the
above stated corporation, at place designated in this certificate,
I hereby accept to act in this capacity, and agree to comply
with the provision of said Act relative to keeping open said
office.

BY: Jay J. Reynolds
JAY J. REYNOLDS, ESQ.
Resident Agent

EXHIBIT 1

LEGAL DESCRIPTION
BARWOOD CONDOMINIUM, ALL PHASES

TO

EXHIBIT H
ARTICLES OF INCORPORATION
BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

LEGAL DESCRIPTION

BARWOOD CONDOMINIUM, ALL PHASES

All of Block "A", Plat I of BARWOOD as recorded in Plat Book 31, Pages 24 and 25 and Plat II of BARWOOD as recorded in Plat Book 33, Pages 27 and 28 of the Public Records of Palm Beach County, Florida.

EXHIBIT 2

LEGAL DESCRIPTION OF
RECREATION FACILITIES

OF

BARWOOD CONDOMINIUM II, A CONDOMINIUM

TO

EXHIBIT H
ARTICLES OF INCORPORATION
BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM II, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

LEGAL DESCRIPTION

RECREATION FACILITIES, BARWOOD CONDOMINIUM II

That parcel of land denoted as Recreation Area "A", as shown on Plat I of Barwood, which is recorded in Plat Book 31, Pages 24 and 25, Public Records, Palm Beach County, Florida.

TOGETHER WITH:

That portion of Block A contained within the loop of Barwood Lane North as shown on the aforesaid Plat 1 of Barwood, further described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on the aforesaid Plat 1 of Barwood; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point; thence with a bearing of N. $88^{\circ} 40' 37''$ W., a distance of 25.00 feet to the Point of Beginning; thence with a curve to the right having a tangent bearing of S. $1^{\circ} 19' 23''$ W., a radius of 625.00 feet, an arc length of 44.39 feet to a point; thence with a bearing of S. $52^{\circ} 46' 59''$ W., a distance of 36.80 feet to a point; thence with a bearing of N. $79^{\circ} 49' 37''$ W., a distance of 41.29 feet to a point; thence with a curve to the right having a radius of 61.67 feet, an arc length of 281.09 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet;

thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 15.07 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 105.10 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 28.78 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 179.00 feet to a point; thence with a bearing of S. $61^{\circ} 51' 31''$ E., a distance of 28.78 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.00 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W., a radius of 100.00 feet, an arc length of 32.2 feet to a point; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to a point; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W.,

a radius of 100.00 feet, an arc length of 32.2 feet to a point, thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet to the Point of Beginning of the centerline of the subject easement; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.0 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida and a portion of PLAT II of BARWOOD as recorded in Plat Book 33, Pages 27-28 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet; thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 364.15 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $27^{\circ} 11' 29''$ W., a distance of 36.10 feet to a point; thence with a bearing of N. $19^{\circ} 01' 23''$ E., a distance of 213.94 feet to a point; thence with a curve to the left having a radius of 675.00 feet an arc length of 208.52 feet to a point; thence with a bearing of N. $74^{\circ} 03' 20''$ E., a distance of 54.36 feet to a point; thence with a curve to the right having a tangent bearing of S. $35^{\circ} 17' 43''$ E., a radius of 187.75 feet, an arc length of 45.53 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 75.55 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 163.00 feet to a point; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 191.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 67.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 95.11 feet to a point lying on the North right-of-way line of S.W. 18th Street; thence with a bearing of West along said North right-of-way line of Southwest 18th Street a distance of

73.63 feet to a point; thence with a curve to the right having a radius of 1205.00 feet, an arc length of 349.00 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 244.70 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet to the Point of

Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.

Containing a total of 4.568 Acres, more or less and subject to easements and rights-of-way of record.

